

ELIZABETH II



1985 CHAPTER xxi

An Act to authorise The Great Southern Cemetery and Crematorium Company Limited to sell or develop certain lands forming part of Streatham Park Cemetery belonging to the said Company free from restrictions; and for other purposes. [16th July 1985]

WHEREAS—

(1) The Great Southern Cemetery and Crematorium Company Limited (hereinafter called “the Company”) was incorporated in 1907 under the Companies Act under the name or style of The Great Southern Cemetery Crematorium and Land Company Limited and purchased lands (hereinafter referred to as “the cemetery lands”) formerly in the urban district of Mitcham in the county of Surrey and now in the London borough of Merton and set aside the same for the purposes of the interment of human remains:

(2) The Company has from time to time obtained a sentence of consecration in respect of portions of the cemetery lands and upon part thereof have erected a crematorium:

(3) The Company believe that the lands described in the Schedule hereto (hereinafter referred to as "the scheduled lands") have not been used for the burial of human remains:

(4) That portion of the scheduled lands described in Part I of the Schedule hereto has been consecrated:

(5) Owing to the increasing use of cremation for the disposal of human remains, there is more land available to the Company than will be required by them for or in connection with the burial of the dead:

(6) It is expedient that the Company should be authorised to develop or dispose of the scheduled lands by way of sale free from restrictions, and that notwithstanding the Company's belief that the scheduled lands have not been used for the burial of human remains the provisions contained in this Act with respect to the removal of human remains from the scheduled lands should be enacted:

(7) It is expedient that the other provisions contained in this Act should be enacted:

(8) The objects of this Act cannot be attained without the authority of Parliament:

(9) In the month of November 1984, a plan (hereinafter referred to as "the deposited plan") marked "In Parliament—Session 1984–85 Streatham Park Cemetery Plan" showing coloured red, the consecrated portion of the scheduled lands and, coloured green, the remainder of the said lands, was deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

Short title. 1. This Act may be cited as the Streatham Park Cemetery Act 1985.

Interpretation. 2.—(1) In this Act, unless the context otherwise requires—
 "Company" means The Great Southern Cemetery and Crematorium Company Limited;
 "consecrated land" means that portion of the scheduled lands described in Part I of the Schedule hereto and coloured red on the deposited plan;
 "developer" means the Company or any other person using, developing or dealing with the scheduled lands;

“scheduled lands” means the lands described in Part I and Part II of the Schedule hereto and coloured red and green respectively on the deposited plan.

(2) If there be any discrepancy between the Schedule to this Act and the deposited plan, the deposited plan shall prevail.

3. As from the passing of this Act the scheduled lands shall be freed and discharged from all trusts, uses, obligations, disabilities and restrictions whatsoever (including, as respects the consecrated land, the effects of consecration) which immediately before the passing thereof attached to the scheduled lands by reason of the scheduled lands, or any part thereof, being consecrated land or land being used or set apart for the interment of human remains or having been or formed part of a cemetery or being a disused burial ground within the meaning of the Disused Burial Grounds Act 1884 and the provisions of that Act shall cease to apply to the scheduled lands. Discharge of trusts and restrictions affecting scheduled lands. 1884 c. 72.

4.—(1) If, in the course of developing the scheduled lands, any human remains are found by the developer, or if at any time before or during the development of the scheduled lands it appears to the developer that human remains have been interred therein the developer shall remove, or cause to be removed the remains of all deceased persons interred therein in accordance with the following provisions of this section. Removal of human remains.

(2) Before any such remains are removed from the scheduled lands the developer shall give notice in accordance with subsection (3) below of the intended removal of the remains from the scheduled lands.

(3) Notice under subsection (2) above shall describe the scheduled lands and state the general effect of the following provisions of this section, and shall be given by:—

(a) publishing it once in each of two successive weeks in a newspaper circulating in the London borough of Merton; and

(b) displaying it in a conspicuous place upon or near to the scheduled lands.

(4) At any time within 8 weeks after the first publication of a notice under subsection (2) above, any person who is a personal representative or relative of any deceased person whose remains are interred in the scheduled lands may give notice in writing to the developer of his intention to undertake the removal of such remains, and thereupon if such remains can be identified, he shall be at liberty to cause such remains to be removed and reinterred in any burial ground or cemetery in which burials

may legally take place, or to be removed to and cremated in any crematorium, and forthwith after such reinterment or cremation shall provide to the developer a certificate for the purpose of enabling compliance with subsection (8) below.

(5) If any person giving such notice as aforesaid fails to satisfy the developer that he is such personal representative or relative as he claims to be or that the remains in question can be identified, the question shall be determined on the application of either party by the county court, and the court shall have power to make an order specifying who shall remove the remains and as to the payment of the costs of the application.

(6) The developer shall defray the expenses of the removal and reinterment or cremation of such remains, not exceeding such sum as would be incurred by the developer in the removal and reinterment or, as the case may be, cremation of those remains or such other sum as may be reasonable in the circumstances.

(7) If—

- (a) within the said period of 8 weeks no notice under subsection (4) above has been given to the developer in respect of any remains in the scheduled lands; or
- (b) such notice is given and no application is made under subsection (5) above within 8 weeks after the giving of the notice but the person who gave the notice fails to remove the remains within a further period of 8 weeks thereafter; or
- (c) within 8 weeks after any order is made by the county court under subsection (5) above any person, other than the developer, specified in the order fails to remove the remains; or
- (d) it is determined that the remains to which any such notice relates cannot be identified;

the developer shall be at liberty to remove the remains and cause them either to be reinterred in such burial ground or cemetery in which burials may legally take place as the developer thinks suitable for the purpose, or cremated in such crematorium as the developer thinks suitable for the purpose:

Provided that if any personal representative or relative has given notice under subsection (4) above and has satisfied the developer that he is such personal representative or relative as he claims to be and that the remains in question can be identified but does not remove the remains, the developer shall comply with any reasonable request he may make in relation to the removal and reinterment or cremation of the remains.

(8) Upon the reinterment or cremation of any remains under this section, a certificate of reinterment or cremation shall be sent to the Registrar General by the developer giving the date of reinterment or cremation and identifying the place from which the remains were removed and the place in which they were reinterred or cremated.

(9) The removal of the remains of any deceased person under this section shall be carried out in accordance with any directions that may be given by the Secretary of State.

(10) Any jurisdiction or power conferred on the county court by this section may be exercised by the registrar of the court.

(11) Section 25 of the Burial Act 1857 shall not apply to a 1857 c. 81. removal carried out in accordance with this section.

5. All costs, charges and expenses of and incidental to the Costs of Act. preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Company.

SCHEDULE**DESCRIPTION OF LANDS REFERRED TO IN THE FOREGOING ACT****PART I****THE CONSECRATED LAND**

A piece of land of quadrilateral shape in the London borough of Merton extending to 0.205 acres or thereabouts, the eastern corner of which is situated at the point at which the south-eastern and south-western boundaries of the property known as number 70 Meopham Road converge (hereinafter known as "the first fixed point") the northern corner of which is situated a distance of 87 feet or thereabouts measured along the south-western boundary of number 70 Meopham Road to its junction with the south-eastern boundary of the properties known as numbers 66 to 80 Woodstock Way the western corner of which is situated a distance of 108 feet or thereabouts measured along such south-eastern boundary in a south-westerly direction and the southern corner of which is a distance of 79 feet or thereabouts measured from the western corner in a south-easterly direction and 110 feet or thereabouts measured from the first fixed point in a south-westerly direction and bounded to the south-east and south-west by other lands belonging to the Company.

PART II**THE UNCONSECRATED LAND**

A piece of land of irregular shape in the London borough of Merton extending to 1.115 acres or thereabouts bounded by a line commencing at a point (hereinafter known as "the second fixed point") 110 feet or thereabouts measured in a north-easterly direction along the north-western boundary of the property known as number 91 Tamworth Lane from the western corner of the boundary of that property where it abuts Tamworth Lane and continuing in this direction for a distance of 150 feet or thereabouts along the existing north-western boundary of lands owned by the Company thence proceeding for a distance of 18 feet or thereabouts in a south-easterly direction thence proceeding for a distance of 37 feet or thereabouts in a south-westerly direction thence proceeding for a distance of 32 feet or thereabouts in a southerly direction thence proceeding for a distance of 104 feet or thereabouts in a south-south-easterly direction thence proceeding for a distance of 202 feet or thereabouts in a south-easterly direction thence proceeding for a distance of 155 feet or thereabouts in a more easterly direction thence proceeding for a distance of 52 feet or thereabouts in a south-easterly direction until that boundary meets an existing fence on the north-western boundary of the property known as 11 Crossways Road thence proceeding for a distance of 52 feet or thereabouts in a south-westerly direction until that boundary meets the footpath of Crossways Road thence proceeding in a westerly direction along the boundary with Crossways Road for a distance of 96 feet or thereabouts until that boundary meets the north-eastern boundary of the rear access way behind the odd-numbered houses known as numbers 91 to 137 inclusive Tamworth Lane thence proceeding in a north-westerly direction along that boundary for a distance of 513 feet or thereabouts to the second fixed point and bounded to the north-east by other lands belonging to the Company.

PRINTED IN ENGLAND BY OYEZ PRESS LIMITED
FOR W. J. SHARP

Controller and Chief Executive of Her Majesty's Stationery Office and
Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

£1.35 net

ISBN 0 10 512185 1



Streatham Park Cemetery Act 1985

CHAPTER xxi

ARRANGEMENT OF SECTIONS

Section

1. Short title.
2. Interpretation.
3. Discharge of trusts and restrictions affecting scheduled lands.
4. Removal of human remains.
5. Costs of Act.

SCHEDULE—Description of lands referred to in the foregoing Act—

Part I—The consecrated land.

Part II—The unconsecrated land.